

24STCV15429 24STCV15429

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: PETITIONS FOR APPROVAL OF COMPROMISE OF CLAIM FOR MINORS

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Case Number: 24STCV15429 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

ESTELA DEL CARMEN CABEZAS
DURAN; et al.

Plaintiffs,

vs.

0312 RAMONA APTS., LP, A
CALIFORNIA LIMITED PARTNERSHIP; et al.

Defendants.

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CASE NO: 24STCV15429

[TENTATIVE] ORDER RE: PETITIONS
FOR APPROVAL OF COMPROMISE OF CLAIM FOR MINORS

Dept. 731

August 4, 2026

8:30 a.m.

Moving Party: Petitioner and Guardian Ad Litem, Estela Del Carmen
Cabezas Duran

Opposing Party: None

Notice: OK

Background Facts

Plaintiffs sue Defendant 0312
Ramona Apts., LP, and other Defendants pursuant to a June 20, 2024, Complaint
alleging uninhabitable rental conditions from Defendants, Plaintiffs' landlords,
resulting in injuries to Plaintiffs, supporting five causes of action.

On April 17, 2026, Plaintiffs filed
a notice of settlement, noting a conditional settlement with an expected
dismissal of July 17, 2026.

Now before the Court are July 14,

2026, petitions by Plaintiff Estela Del Carmen Cabezas Duran, as parent and guardian ad litem, for approval of the settlement as relates to minor Plaintiffs, Alejandra Gabriela L and Alejandro Gabriel L—for ease of reference hereafter referred to by first names; no disrespect is intended.

Petitions to Approve
Minors' Compromise

a.

Legal Standard on Petitions to Approve
Minors' Compromise

Under Code of Civil Procedure

section 372, any compromise of claim or action or disposition of proceeds of judgment made for a minor or adult with a disability must be approved by the Court. (See also Prob. Code § 3600, subd. (b) [a compromise or covenant for a disputed claim or damages, money, or other property of a minor or person who lacks legal capacity is valid only after it has been approved by the superior court].) A petition for court approval of a compromise of a minor or disabled adult's compromise or judgment of a pending action or proceeding to which this person is a party must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. (Cal. Rules of Court, rule 7.950; see also Cal. Rules of Court, rules 7.950.5-7.955.) The petition is generally submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (Judicial Council form MC-350). (Cal. Rules of Court, rule 7.950.) If the Court is satisfied that the compromise, covenant, settlement, or disposition is in the best interest of the person, then the Court should approve the same. (See *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1338.)

b. Discussion

A review of the petitions shows that they meet all the requirements in California Rules of Court, rules 7.950 to 7.955. The record reflects that the amended petitions filed for Alejandra and Alejandro:

(1) Are filed on verified Civil

Form MC-350EX and contain a full disclosure of all information that bears upon the reasonableness of the compromise, covenant, settlement, or disposition (see, e.g., Petitions at §§ 10-11, 14-17, attachs. 11b.(5), 17a, 17e);

(2) Though filed on Civil Form

MC-350EX, do not seek expedited relief, and thus are not subject to this rule (see Jul. 16, 2026, Declaration, ¶ 7-9; see also Cal. Rules of Court, rule 7.950.5, subd. (a));

(3) Show the name, state bar

number, law firm, and business address of the attorney (§ 17.b.), to-date compensation (§ 17.c.), insurer involvement (§ 17.d.), representation of other parties in this action (§ 17.e., attach. 17.e.), expected fees (§ 17.f., attach. 17.f.), and representation terms (§ 17.a.(2), attach 17a.);

(4) Need not satisfy California

Rules of Court, rule 7.952 as good cause exists to dispense with the need for the children's personal appearance or the personal appearance of their parent/guardian ad litem;

(5) Were filed with proposed orders

conforming to California Rules of Court, rule 7.953 (see Petitions, Proposed Orders);

(6) Need not satisfy California

Rules of Court, rule 7.954 as no withdrawal of funds are at issue; and

(7) Show reasonable fees charged to

the minors here (§ 16 [25%]) (§ 16, attach 11b.(5)).

Moreover, nothing before the Court

indicates that the settlement is not in the children's best interest, where the parents in the best position to use the remaining settlement proceeds to further the economic welfare and wellbeing of these minors. (Attach. 11b.(5).)

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Pursuant to CRC 7.952, unless excused from doing so, Petitioner and Plaintiff must appear and testify before the Court grants the petition. Plaintiffs Alejandro L is 10 years old and Alejandro L is seven years old, and therefore the Court excuses their appearance. Jozy C is 16 years old and

he will need to appear. The Court will process the orders lodged in connection with the petition if it is satisfied with Petitioner's testimony at the hearing.

c. Conclusion

Plaintiffs' petitions are GRANTED.

Pursuant to California Rules of Court, rule 7.953, a certified or filed endorsed copy of the order MUST be delivered to a manager at the financial institution where the funds are to be deposited, and a receipt from the financial institution MUST be promptly filed with this Court, acknowledging receipt of both the funds deposited and the order for deposit of funds following approval of these petitions.

Petitioner and Guardian Ad Litem,
Estela Del Carmen Cabezas Duran is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court